Sherman v. *Barrett*, McMull. (S. Car.), 163; *Aiken* v. *Martin*, 11 Paige, 499; *Note*, 15 Fed. Rep. 726.

"I always thought," said Parke, J., in *Perry* v. *Gibson*, *supra*, "that a subpœna *duces tecum* had two distinct objects, and that one might be enforced without the other." In *Summers* v. *Moseley*, *supra*, the function of the writ was carefully considered and the judgment was rendered after consultation with the judges of the other courts. It was argued that "the *duces tecum* part of the writ is only compulsory as ancillary to the *ad testificandum* part." But the reasoning of the court negatived the contention; and it was ruled that the person subpœnaed was "compellable to produce the document in his possession without being sworn, the party calling upon him to produce it not having occasion to ask him any question." Bayley, B., said: "The origin of the *subpœna duces tecum* does not distinctly appear. It has been said on the part of the defendant that it was not introduced or known in practice till the reign of Charles the Second, and it may be that in its present form the *subpœna duces tecum* was not known or made use of until that period; but no doubt can be entertained that there must have been some process similar to the *subpœna duces tecum* to compel the production of documents, not only before that time, but even before the statute of the 5th of Elizabeth. Prior to that statute, there must have been a power in the crown (for it would have been utterly impossible to carry on the administration of justice without such power) to require the attendance in courts of justice of persons capable of giving evidence, and the production of documents material to the cause, though in the possession of a stranger. The process for that purpose might not be called a *subpœna duces tecum*, but I may call it a *subpœna* to produce; the party called upon in pursuance of such a process not as a witness, but simply to produce, would do so or not, and if he did not, I can entertain no doubt that